

THE UNIVERSAL HOUSE OF JUSTICE

1998-05-21

1 dear bahá'í friends,
2 enclosed persian original and english translation of an extraordinary ver -
dict handed down by court of Appeals Number eight for the province
of khurásán, 18 September 1997, against two members of the iranian
3 bahá'í community, mr. jamáli'd- dín pájípúr and mr. man'ur mihrábí.
both defendants had appealed against sentences passed on them by the
revolutionary court Number one in bírjand, iran, which had sentenced
4 each of them to two years imprisonment and the confiscation of property.
5 The appeals court upheld the decisions of the lower court. This document
6 is being sent so that you may share it with your government and draw attention to
those statements that indicate the atmosphere in which the
7 bahá'ís of iran live.
As with many other judgments by iranian courts, the document provides
8 further evidence that members of the bahá'í faith in iran are being arrested
9 and condemned solely because of their membership in what is described as "the
wayward bahá'í sect." The statement in the verdict that "bahá'ísm
10 is recognized as an illegal organization" makes a mockery of the iranian
11 regime's claim that bahá'ís nevertheless retain their rights to the observance
12 of their religious beliefs. charges brought against the defendants mention
13 that they have "regularly been holding bahá'í feasts and meetings on 'bahá'í
14 life," adducing such activities as evidence of criminal behavior, including
15 "espionage" for the state of israel.
16 what is startling in the text of the judgment, however, is that it also
17 accepts as evidence of illegal activity such actions of the two defendants as holding
classes for bahá'í youth in, respectively, english language studies
18 and science and technology. The charges note, without apparent embarrass-
19 ment on the part of the iranian judicial authorities, that the two convicted

20 persons carried out these activities “with the intention of improving the
21 standard of education of bahá’í students and their families.” The context in
22 which the behavior of the defendants has to be seen derives, of course, from 268.1
268 2
268 3
269 m e S a g e S f r o m T h e u n i v e r S a l h o u S e o f j u S T i c e
270 622the fact that the iranian regime has arbitrarily excluded bahá’í students from
271 higher education solely on grounds of their religious affiliation.
272 That senior bahá’ís like the two defendants have been free to offer their
273 services in this regard is, of course, the result of their having been dis-
274 missed—again solely on grounds of their religious affiliation—from their
employment. The charges upheld by the appeals court leave no doubt on
275 this point, noting in passing that mr. m ihrábí had been dismissed from his
position “as a result of the cleansing procedures.”

it will be apparent to your National Assembly that the persecution of

276 messrs. þájípúr and mihrábí is part and parcel of the continuing attempt
277 to suffocate the spiritual and community life of the iranian believers, as
278 called for in the secret memorandum endorsed by the iranian head of State,

Ayatollah khamenei, a copy of which was submitted to the united Na-

279 tions human rights commission by its Special representative, professor
280 reynaldo g alindo p ohl.

281 The general issue of the protection of the civil rights of the members of
282 the iranian bahá’í community is under close and continuing scrutiny by the

united Nations, the general Assembly having adopted, on 12 december

283 1997, a resolution (52/142) calling unambiguously for the government
284 of iran to “implement fully the conclusions and recommendations of the

Special rapporteur of the commission on human rights on religious in-

285 tolerance relating to the bahá’ís . . . until they are completely emancipated.”

Those recommendations included the restoration of the bahá’í commu-

286 nity’s rights in the administration of its affairs and the rights of its youth to education.

...

287 with loving b ahá'í greetings,

for Department of tHe secretariat268.4

268 5

268 6

269 1996–2000 • T h e f o u r Y e a r P l a n

270 62269

Formation of the National Spiritual Assembly

of Slovakia

[signed: The Universal House of Justice]